

File No.: EXP202301129

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 23, 2022, a complaint was filed by A.A.A., with entry registration number ***REGISTRO.1 before the Spanish Agency for Data Protection against the entity COMMUNITY OF PROPERTY OWNERS R.R.R. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

"(...) the complained Community of Property Owners has installed a video surveillance system without observing the requirements established by the regulations on horizontal property for its installation, without the corresponding majority agreement of 3/5 being adopted.

It also indicates that one of the cameras could capture the public road, without prior administrative authorization for this, and that the signs indicating the video surveillance area installed are contradictory regarding the data controller, listing both the Community of Property Owners, its Administration, ***EMPRESA.1 and ***EMPRESA.2."

It provides the Agreement of the Owners' Meeting where the matter regarding the installation of the system was discussed, images of the location of the cameras, and photographs of the video surveillance area signs (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party on 08/09/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP, as stated in the certificate in the file.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

THIRD: On October 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing, as the deadline expired without any response from the complained entity.

LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

In this case, the complaint submitted to this agency is examined, through which various "irregularities" related to the video surveillance system installed in their Community of property owners are reported. First, regarding the issue of certain "irregularities" in the voting for the installation of the system, it should be noted that this agency is not competent to analyze the validity of the agreements adopted in the Owners' Meeting, as this is a matter for the civil jurisdiction.

It should be remembered that if such an agreement is not challenged judicially by any of the neighbors within the legally established period (Article 18 LPH), the agreement is validated and becomes effective.

Thus, in principle, the presented Minutes constitute a legitimate enabling title for the installation of the camera system as it is subject to transfer to the entire group of property owners of the building who are aware of its presence in the property.

Secondly, regarding the lack of information about their presence, it should be noted that the complainant himself provides documentary evidence with an informative sign that designates the Community of property owners as the "responsible" party, being usual for the President to receive any requests in this regard.

Therefore, the duty of information is understood to be fulfilled with the presence of the sign, an aspect not denied by the complainant, where an effective address appears.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/4

and, associated with its own Community of property owners, being also aware of the address of the main governing body of its Community: the President of the same.

This body does not consider that there is any confusion regarding the address to which any request can be directed, since one of the approved signs indicates the effective address, within the Community of property owners; nor does the claimant demonstrate having exercised any right in the matter at hand.

It is not unusual, given the lack of experience in the matter of some governing bodies of Communities of property owners, for the sign of the installing company of the system (e.g., Securitas, Prosegur, etc.) to appear alongside the informative sign, indicating that it is a video-monitored area and disclosing the installer of the system, being sufficient in these cases that the informative sign of the video-monitored area is located in a visible area informing about the responsible party and how to exercise rights within the framework of data protection.

Thirdly, the claimant considers that the camera captures public space, although the images provided only confirm the presence of a device inside the entrance of the building oriented towards the main access door to the Community, so the capture could be considered proportionate to the purpose of the system, which is the protection of the property against hypothetical thefts, with the impact on public space being lesser in any case.

Article 22, section 2 of the LOPDGDD (LO 3/2018, December 5) states:

"Images of public roads may only be captured to the extent that it is essential for the purpose mentioned in the previous section."

It is not unusual for video surveillance cameras to be installed facing the main access, with the dual purpose of deterring third parties by the sight of the device in the lobby and protecting the property, capturing the entries/exits of the same, usually being low-definition cameras and also oriented towards a door that limits the field of visibility of the public sidewalk in a guiding manner.

III

Therefore, based on the indications in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Analyzing the complaint as a whole, the issues raised fall within the framework of the Horizontal Property Law and its rights as a property owner of a property, being advisable to address the issues

raised or their own concerns in the matter with the Administrator of the property or, if applicable, in the competent judicial instances, avoiding the instrumentalization of this body for matters outside its jurisdiction.

Thus, in accordance with the above, by the Director of the Spanish Agency for Data Protection,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/4

IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to the claimant A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es